

December 8, 2025

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Dec 08 2025

Hon. Rob Bonta
Attorney General of California
1300 I Street, 17th Floor
Sacramento, CA 95814

INITIATIVE COORDINATOR
ATTORNEY GENERAL'S OFFICE

Attention: Ms. Anabel Renteria, Initiative Coordinator

Re: Request for Title and Summary for Proposed Initiative Constitutional Amendment

Dear Mr. Bonta:

Pursuant to Article II, Section 10(d) of the California Constitution, I hereby submit the attached proposed Initiative Constitutional Amendment to your office and request preparation of a circulating title and summary of the chief points and purposes of the measure as provided by law. Included with this submission are the proponent affidavit(s) signed by the proponent(s) of this measure as required by Sections 9001 and 9608 of the California Elections Code, along with a check for \$2,000.00.

All inquiries or correspondence relative to this initiative should be directed to Kurt R. Oneto at koneto@nmgovlaw.com or 916-446-6752.

Thank you for your assistance.

Sincerely,



Kurt R. Oneto, Proponent

Enclosure: Proposed Initiative Constitutional Amendment

Section 1. Title.

This Act shall be known and may be cited as the Budget Stability Act of 2026.

Section 2. Findings and Declarations.

The People of the State of California hereby find and declare the following:

(a) Special interests have greatly contributed to California's ongoing state budget instability and inflexibility.

(b) Special interests often promote reliance on temporary, one-time revenues and other ballot-box budgeting gimmicks to solve the state's annual budget problems. However, when the one-time revenues run out, the state is left with an even larger budget hole to fill. Over the long run, these one-time revenue schemes and other ballot-box budgeting gimmicks make the state's budget problems worse, not better.

(c) In order to ensure that the benefits from one-time revenues—which often only assist special interests—outweigh the harm they cause to California's budget stability and economic prosperity, they should be required to be approved by a higher degree of voter consensus.

Section 3. Statement of Purpose.

In enacting this Act, the purpose and intent of the People of the State of California is to require a higher degree of consensus for statewide initiative measures that complicate the state budget process by enacting one-time revenues, which are often nothing more than a ballot-box budgeting gimmick.

Section 4. Article XIII E is added to the California Constitution, to read:

ARTICLE XIII E

ONE-TIME REVENUES

SECTION 1. Approval Requirement for Statewide Initiative Measures Containing One-Time Revenue Sources.

(a) On or after January 1, 2026, no statewide initiative measure may establish, enact, create, impose, or raise any one-time revenue source unless the statewide initiative measure is approved by two-thirds of the votes cast thereon.

(b) For purposes of this section:

(1) "One-time revenue source" means a state tax that is imposed or collected only for a temporary period of time.

(2) "Permanent revenue source" means a state tax this is imposed or collected indefinitely.

(c) A statewide initiative measure that extends the operation or imposition of a tax first imposed prior to January 1, 2026, or that converts a one-time revenue source into a permanent revenue source, is not subject to the provisions of this section.

SEC. 2. Application of Article.

This article applies to all statewide initiative measures submitted to the electors on or after January 1, 2026, including measures that appear on the ballot at the same election at which the measure adding this article is approved by the electors.

Section 5. Conflicting Measures.

(a)(1) In the event that this initiative measure appears on the same statewide election ballot as another initiative measure containing any a one-time revenue source, to the extent that other initiative measure is not approved by two-thirds of the votes cast thereon, then that other initiative measure shall be deemed to be in conflict with this measure. In the event that this initiative measure receives a greater number of affirmative votes, the provisions of this measure shall prevail in their entirety, and the provisions of the other measure shall be null and void.

(2) For purposes of this section, "one-time revenue source" shall have the same meaning as set forth in Section 4 of this Act.

(b) If this initiative measure is approved by the voters but superseded in whole or in part by any other conflicting initiative measure approved by the voters at the same election, and such conflicting measure is later held invalid, this measure shall be self-executing and given full force and effect.

Section 6. Severability.

The provisions of this Act are severable. If any portion, section, subdivision, paragraph, clause, subclause, sentence, phrase, word, or application of this Act is for any reason held to be invalid by a decision of any court of competent jurisdiction, that decision shall not affect the validity of the remaining portions of this Act. The People of the State of California hereby declare that they would have adopted this Act and each and every portion, section, subdivision, paragraph, clause, subclause, sentence, phrase, word, and application not declared invalid or unconstitutional without regard to whether any part of this Act or application thereof would be subsequently declared invalid.

Section 7. Effective Date.

This Act shall take effect at the earliest possible date in accordance with Section 10 of Article II of the California Constitution. This Act shall become operative on the same day it takes effect.

Section 8. Liberal Construction.

This Act shall be liberally construed to give effect to its intent and purposes.

Section 9. Legal Defense.

The purpose of this section is to ensure that the people's precious right of initiative cannot be improperly annulled by state politicians who refuse to defend the will of the voters. Therefore, if this Act is approved by the voters of the State of California and thereafter subjected to a legal challenge which attempts to limit the scope or application of this Act in any way, or alleges this Act violates any state or federal law in whole or in part, and both the Governor and Attorney General refuse to defend this Act to the fullest extent possible on behalf of the State of California, then the following actions shall be taken:

(a) Notwithstanding anything to the contrary contained in Chapter 6 (commencing with Section 12500) of Part 2 of Division 3 of Title 2 of the Government Code or any other law, the Attorney General shall appoint independent counsel to faithfully and vigorously defend this Act to the fullest extent possible on behalf of the State of California.

(b) Before appointing or thereafter substituting independent counsel, the Attorney General shall exercise due diligence in determining the qualifications of independent counsel and shall obtain written affirmation from independent counsel that independent counsel will faithfully and vigorously defend this Act to the fullest extent possible. The written affirmation shall be made publicly available immediately upon request.

(c) In order to support the defense of this Act in instances where the Governor and Attorney General fail to do so despite the will of the voters, a continuous appropriation is hereby made from the General Fund to the Controller, without regard to fiscal years, in an amount necessary to cover the costs of retaining independent counsel to faithfully and vigorously defend this Act on behalf of the State of California to the fullest extent possible.